

Online Complaint Form



COMPLAINT ABOUT A CALIFORNIA JUDGE, COURT COMMISSIONER OR REFEREE

Confidential under California Constitution Article VI, Section 18, and Commission Rule 102

For instructions on filling out and submitting this form, please visit the commission's [Online Complaint Instructions webpage](#).

Date Submitted
9/11/2023 10:50 PM

Entry Number
5,763

* Indicates a required field

Your information

Complainant 1

Your name
Kostiantyn Mars

Your pronouns (e.g., he/him; she/her; they/them)

Your email
constantine.mars@gmail.com

Your telephone number
(408) 518-0088

Your address
PO Box 8081, San Jose, California 95155

Judge and conduct

Judge 1

Name of judge
Andrea Flint

Or Name of court commissioner or referee

Court Level
Superior Court

Court of Appeal District

County
Santa Clara

Type of court case

Family Law

Case name

Dissolution of Family Mars

Case number

22FL003144

Your relationship to the case

Litigant/Family/Friend

Date or dates conduct occurred

09/07/2023, 09/05/2023, 08/01/2023, 07/31/2023, 06/29/2023

Please specify what action or behavior of the judge, court commissioner or referee is the basis of your complaint. Provide relevant dates and the names of others present. (Attach additional pages if necessary.)*

Complaint

09/07/2023 Judge Flint refused to recuse herself due to bias twice:

- Judge made false statements on record in court on 09/07/2023, saying that she was not served motion to recuse due to bias - while in fact, she was served by bailiff in person in the morning of the same day in presence of me, clerk, court reporter and people present during morning hearing; In attached minute order it was reflected as "DOES NOT ACKNOWLEDGE SERVICE"; (minute order attached)
- Judge demonstratively stated that "nobody is listening to your statement and it will not be recorded because we do not have court recorder today" during afternoon hearing 09/07/2023 - in response to my verbal statement on record that I'm seeking another court and judge recusal due to bias. I also sent email to Clerk of Department 79 with ask to include my statement on record into docket an minute order - though, this ask was completely ignored (email attached) and minute order does not include request for recusal.
- Judge repetitively refused to recuse 3 times in a row: 08/09/2023, 09/05/2023, 09/07/2023 - despite multiple (28) evidences, filed with the court and attached to motion, and despite significant harm that biased orders of judge do to safety and wellbeing of my child and to integrity of whole process; (motion to recuse and order striking attached - evidences 1,2)
- Judge attempted to run away to escape bailiff serving her motion to recuse on 09/05/2023 in courtroom in presence of clerk, court reporter and people on the hearing.
- Judge stated demonstratively that she will strike out motion to recuse without consideration the same day on hearing 09/05/2023 - which she did
- Judge removed emergency screening recommendations and refused to subpoena emergency screener on 06/29/2023, endangering life and wellbeing of my child (orders attached, evidences 3-6).
- Judge refused to grant abduction prevention orders, assign Minor's Counsel, order parenting counseling and mental health treatment to Respondent, refused to grant relief for child custody and visitations (all were recommended by emergency screener and denied by judge without any explanation) on 06/29/2023.
- Judge refused to review evidence on all hearings (06/29/2023, 07/31/2023, 08/01/2023, 09/07/2023)
- Judge granted false allegations of Respondent's attorney and wasted child abduction prevention hearing on those irrelevant false allegations, and refused to subpoena emergency screener, review emergency screener recommendations, supervised reports and provided evidences. Judge granted extremely biased orders that endanger life of the child and go against safety and best interest of the child (granted to abandon child, while child was deprived custody and visitations for year and screener recommended healthy co-parenting; granted to give up child's documents and deny abduction prevention orders - while evidence and witness statements confirm that Respondent attempted abduction back in 2019-2020, and threatenend to abduct child outside of the United States in 2022, which she attempted with fraudulent DVRO based on false allegations with the goal to steal child's passport and abduct child to Ukraine and endanger child's life due to war there).

- Judge physically punished me by denying request for continuance due to medical emergency - therefore I had to suffer extreme headache while staying on hearing 07/31/2023, and was unable participate in hearing, but was forced to agree to Judge's biased orders. Some of those orders go against best interest of the child (like abandoning child), another go against California Law and cannot be executed at all (to transfer car title of VW which is financed and I'm the only registered owner - confirmed with L/O that this order simply cannot be executed).

- Judge endangered life of my child by ordering complete blocking of contact with the child (who I protected from beating and abuse by mother before mother abducted child), granting full custody to mother who was beating and abusing child, and abducted child into undisclosed location and blocked all contact with the child; and ordered me to give up child's documents - so mother can abduct my child outside of the United States to Ukraine and endanger life of the child there due to ongoing war there (while mother threatened to abduct and bury child in Ukrainian soil, abducted child with fraud, blocked all contact, and has travel authorization to travel with the child without father for the next 10 years - which with absence of abduction prevention orders opens gates for respondent to abduct child as soon as she gets child's passport). Knowing all that, and having evidences of mother's violence and previous abduction attempts, judge ordered me to give up my child's documents and allow respondent to abduct my child outside of the United States to Ukraine to endanger his life (and bury child in Ukraine if trust Respondent).

- Judge denied motion to put respondent into contempt of court and to disqualify respondent's attorney after they abducted child into undisclosed location, blocked all contact with the child (including even calls), and made impermissible pressure on emergency screener and professional supervisors (emails with derogatory messages , threats to block contact until I will give up documents and motion to disqualify attorney attached). Judge was presented all evidence, but refused to review evidence and denied motions, therefore making orders in favor of respondent, and allowing respondent to continue blocking contact with the child and illegally depriving child of custody and visitation.

Please see evidences attached (not all of them fit in the size limit - please feel free to reach me for complete package of evidences if necessary).

Please note that this is the most recent complaint, related to repeated refusal to recuse, but you may see previous complaints, including complaint 5,617 with more evidences and well structured classification of Judge Flint's misconducts, based on earlier hearings.

I kindly ask for help to remove Judge Flint from case 22FL003144 and take necessary disciplinary action according to multiple acts of judge's misconduct that lead to significant and prolonged (already year) harm to my son's safety and wellbeing, and harmed parties in the process.

Judge's misconduct unnecessary complicated our divorce case and damaged court integrity and credibility.

It is impossible to trust judges of California Superior Court after such massive and repeated misconduct that Judge Flint demonstrated, harming innocent child, overcomplicating simple case and harming parties in the process.

Appreciate your help and understanding.

Thank you

File Upload

09-07-2023 Minute order with judges lies.pdf

09-07-2023 Email to Clerk - State on record_ Petitioner is seeking a new court due to bias.pdf

Evidences 2 - 2 Motion to Recuse Judge.pdf

Evidences 1 - 1 Order Striking to deny Motion To Recuse.pdf

Evidences 3 - 6 Orders of Judge Flint.pdf

Evidences 7 - 7 Emergency Screener Recommendations (compressed).pdf

Evidences 8 - 10 Child bruises, drawing and abduction attempt travel tickets 2019-2020.pdf

Evidences 17 - 17 Motion to Disqualify Attorney.pdf

Evidences 11 - 16 Witness statements, Mental health evaluation, Co-Parenting Course.pdf

Evidences 18 - 25 Defamatory pressure on emergency screener, supervisors, blocking all contact with the child (compressed).pdf